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Case Number: 25STCV13147 Hearing Date: September 8, 2026 Dept: 413

TENTATIVE RULING

HEARING

DATE: September 8, 2026

CASE NUMBER: 25STCV13147

CASE NAME: Settles-Tidwell v. Trustees of The California

State University, et al

MOVING PARTY: Defendants Trustees of The

California State University and J. Luke Wood

OPPOSING PARTY: Plaintiff Mia Settles-Tidwell

PROCEEDING: TRANSFER VENUE

RULING SUMMARY: Defendants' motion to transfer venue is denied without prejudice.

Background

This action arises from plaintiff Mia Settles-Tidwell's ("Plaintiff") employment at Sacramento State University ("University") as Vice President for Inclusive Excellence and University Diversity Officer, MPP Level IV, which commenced on November 8, 2021. Plaintiff alleges Defendants discriminated against her based on her race, gender, and age over a six-month period during President J. Luke Wood's tenure, resulting in a hostile work

environment.

Plaintiff filed a complaint against defendants Trustees of The California State University ("Trustee") and J. Luke Wood (collectively, "Defendants") and Does 1 through 20, on May 5, 2025, alleging causes of action for (1) discrimination and harassment based on color/race; (2) retaliation for complaining of discrimination and harassment based on color/race; (3) discrimination and harassment based on gender; (4) retaliation based on discrimination and harassment based on gender; (5) discrimination and harassment based on age; (6) retaliation based on discrimination and harassment based on age; and (7) wrongful termination.

On May 22, 2026, Defendants filed the motion to transfer venue, arguing that transfer to Sacramento County is mandatory pursuant to Government Code section 12965, subdivision (c)(3). Defendants further argue that transfer is appropriate under the Court's discretionary authority. Defendants move for recovery of fees and costs.

Plaintiff opposes the motion.

Request for
Judicial Notice

Plaintiff requests that the Court take judicial notice of the following sixteen documents:

1.
article
published by The State Hornet in May 2024, titled "Mia Settles-Tidwell bids farewell to Sac State," available at <https://statehornet.com/2024/05/sac-state-settles-tidwell-farewell-letter/>, printed on August 24, 2026.
2.
printout
of The State Hornet's website, captured on August 24, 2026, showing the former article listed among the site's "Trending Stories."
3.
article

published by Capital Public Radio on June 16, 2026, titled "Former Sac State diversity officer sues President Luke Wood, CSU system over alleged discrimination," available at <https://www.caprado.org/articles/2026/06/16/former-sac-state-diversity-officer-sues-president-luke-wood-csu-system-over-alleged-discrimination/>, printed on August 24, 2026.

4.

article

published by EdSource on June 16, 2026, titled "Cal State, Sac State president sued over gender, race discrimination," available at <https://edsource.org/updates/cal-state-sac-state-president-luke-wood-sued-over-gender-and-race-discrimination/>, printed on August 24, 2026.

5.

feature

article published by The Sacramento Bee in its June 29, 2026 print edition, titled "Sac State's ex-DEI officer speaks out on suing CSU," together with the online version of that reporting, printed on August 24, 2026.

6.

post

published on The Sacramento Bee's official Facebook page promoting the Bee's coverage of this action to more than 224,000 followers, captured on August 24, 2026.

7.

republication

of The Sacramento Bee's reporting on this action syndicated to Yahoo News on or about June 30, 2026, printed on August 24, 2026.

8.

the

California State University's announcement of the Trustees' appointment of Defendant J. Luke Wood as President of Sac State, printed from the CSU's official website on August 24, 2026.

9.

printout

from the CSU's official website identifying the Office of the Chancellor, 401

Golden Shore, Long Beach, California, as the headquarters of the California State University system, printed on August 24, 2026.

10.

Chancellor's

Office documentation of the CSU's systemwide Merit Salary Increase Program applicable to the 2024 increase at issue in this action, printed from the CSU's official website on August 24, 2026.

11.

materials

published by the CSU and Sac State concerning the approval of the Black Honors College through the Office of the Chancellor in 2023, printed on August 24, 2026.

12.

printout

from the CSU's official website describing the systemwide Civil Rights Programs and Services function based at the Office of the Chancellor, printed on August 24, 2026.

13.

printout

from the official website of the California Department of Justice identifying the Office of the Attorney General located at 300 South Spring Street, Los Angeles, California, printed on August 24, 2026.

14.

printouts

of the United States Census Bureau's QuickFacts pages for Los Angeles County, California, and Sacramento County, California, printed on August 24, 2026.

15.

printout

of the CSU's official enrollment reporting for Sac State, reflecting enrollment of approximately 31,000 students, printed on August 24, 2026.

16.

printout

of Capital Public Radio's public licensing information reflecting that its

broadcast licenses are held by Sac State, printed on August 24, 2026.

The court may take judicial notice of “official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States,” “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States,” and “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452, subds. (c), (d), and (h).) “Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning.” (Joslin v. H.A.S. Ins. Brokerage (1986) 184 Cal.App.3d 369, 374.)

The Court

grants Plaintiff’s request, pursuant to Evidence Code section 452, subdivision (h), for Exhibits 1-7 but only as to the existence, authorship, content, and the publication dates, not the truth of their contents. As to Exhibits 8-12, the Court grants Plaintiff’s request, pursuant to Evidence Code section 452, subdivision (h), and takes judicial notice of the existence of the press releases and webpages, but not the truth of their contents. Lastly, as to Exhibits 13-16, the Court grants Plaintiff’s request, pursuant to Evidence Code section 452, subdivision (h), and takes judicial notice of the location of the Attorney General’s Los Angeles office, official United States Census Bureau population data for Los Angeles and Sacramento Counties, the CSU’s official enrollment figures for Sac State, and the public licensing information for Capital Public Radio.

Transfer
venue

I. Legal Standard

The burden

is on the moving party to establish whatever facts are needed to justify transfer. Normally this requires declarations containing admissible evidence. But the court may also consider facts alleged in the moving party’s verified complaint if uncontroverted by opposing affidavits. (Mission Imports, Inc. v. Sup.Ct. (Monterey Bay Co., Inc.) (1982) 31 Cal.3d 921, 929.)

A.

Proper Venue under Government Code section
12965, subdivision (c)(3)

Venue of a FEHA action is governed
specifically by Government Code section 12965, subdivision (c)(3). Pursuant
to section 12965, subdivision (c)(3), venue is proper in (1) any county in
the state in which the unlawful practice is alleged to have been committed;
(2) the county in which the records relevant to the practice are
maintained and administered; or (3) in the county in which the aggrieved person
would have worked or would have had access to the public accommodation but for
the alleged unlawful practice; but (4) if the defendant is not found
within any of these counties, an action may be brought within the county of the
defendant's residence or principal office.

B.

Venue transfer based on "convenience of
witness" (Code Civ. Proc., §
397)

A much more extensive factual
showing is required for motions based on the "convenience of
witnesses and the ends of justice." (Code Civ. Proc., § 397, subd. (c))
Declarations must show (1) the names of each witness expected to testify for
both parties; (2) the substance of their expected testimony; (3) whether the
witness has been deposed or has given a statement regarding the facts of the
case (and if so, the date of the deposition or statement); (4) the reasons why
it would be "inconvenient" for the witnesses to appear locally; and (5) The
reasons why the "ends of justice" would be promoted by transfer to a different
county (e.g., to permit view of the scene or make other material evidence
available). (Juneau v. Juneau (1941)
45 Cal.App.2d 14, 16.)

The declarations
must contain admissible evidence. A change of venue cannot be based
on declarations consisting of hearsay and conclusions. (Tutor-Saliba-Perini Joint Venture v.
Sup.Ct. (San Diego Unified Port Dist.) (1991) 233 Cal.App.3d 736, 744;
Lieppman v. Lieber (1986) 180 Cal.App.3d 914, 919.)[1]

II. Discussion

A.

Venue under Government Code section 12965,
subdivision (c)(3)

Defendants argue that all decisions made regarding
Plaintiff's employment were made by individuals located at Sacramento State in
Sacramento County and that the records relating to Plaintiff's employment are
maintained at the university. (Mot., at
p. 5; Martin Decl. ¶¶ 6-8.) Defendants
cite *Ford Motor Credit Company v. Superior Ct.* (1996) 50 Cal. App. 4th
306 in support of their contention that Sacramento County is the only proper
venue.

In opposition, Plaintiff argues that because she sued her
employer, the Trustees, not just the university, and the alleged conduct ran through
the Chancellor's Long Beach Office, the unlawful practices are alleged to have
been committed in Los Angeles County. (Opp., at pp. 8-9; Compl., ¶¶ 34, 43, 53, 62, 72, 81, 91, and 98.)
Plaintiff further argues that the following records are maintained and
administered at the CSU's Long Beach headquarters, in Los Angeles County: "systemwide
policies at issue; the Chancellor's Office records of the merit-salary program
under which Plaintiff's pay was set; the Trustees' and Chancellor's Office
records concerning Defendant Wood's appointment, supervision, and evaluation;
and the compliance records of the CSU's systemwide civil-rights office." (Opp.,
at p. 9; Compl. ¶¶ 1, 3; RJN, Exs. 8-12.) As to Defendants' reliance on *Ford
Motor Credit Co.*, Plaintiff argues that the case is not comparable because
the plaintiff there relied on general venue rules rather than section 12965.
(Opp., at p. 10.)

As the moving party, Defendants were
required to establish that Los Angeles County is not the proper venue
under any of the four venue alternatives under Government Code section 12965,
subdivision (c)(3). (*Karson Indus.,
Inc. v. Sup.Ct. (Triangle Auto Sales, Inc.)* (1969) 273 Cal.App.2d 7,
8-9.) Defendants failed to do so.

The "injury" in an employment context occurs where the
employee is situated when the adverse employment action takes place. In her
Declaration filed in support of the motion, Machele Martin, Vice President for
People and Climate at CSU, Sacramento, states that when Plaintiff was an
employee at the University, her home address on file was in Solano County. (Martin

Decl., ¶ 4.) Defendants successfully establish that the injury took place in Sacramento County.

Defendants, however, fail to establish that there are no records relevant to the alleged unlawful practices maintained or administered in Los Angeles County. In reply, Defendants argue that the complaint does not state “an act of supposed harassment, discrimination, or retaliation was committed by anyone at the Chancellor’s Office in Long Beach.” (Reply at p. 6.) Ms. Martin also states that “Plaintiff’s employment records are maintained in Sacramento County.” (Id., ¶ 5.)[2] Plaintiff argues in opposition that relevant records “are not limited to a plaintiff’s campus personnel file” and include “the systemwide policies at issue; the Chancellor’s Office records of the merit-salary program under which Plaintiff’s pay was set; the Trustees’ and Chancellor’s Office records concerning Defendant Wood’s appointment, supervision, and evaluation; and the compliance records of the CSU’s systemwide civil-rights office.” (Opp., at p. 9.) While the Court does not take judicial notice of the truth of the contents of Plaintiff’s Exhibits 8–12, the existence of these systemwide offices and records is sufficient to show Defendants have not met their burden to demonstrate that no relevant records are maintained or administered in Los Angeles County. Defendants fail to put forth sufficient affirmative evidence, like a declaration from the Chancellor’s Office, that completely shuts the door as to the existence of relevant records in Los Angeles County.

The Court also finds Defendant’s policy argument that reliance on Trustees’ systemwide headquarters impermissibly allows every FEHA action against the Trustees’, no matter the university involved, to be proper in Los Angeles County to be unpersuasive. (Reply at p. 6.)

And the facts in *Ford Motor Credit Co.* are sufficiently different from those in this case that its conclusion is not apposite here. (*Ford Motor Credit Company*, supra, 50 Cal. App. 4th 306 (“*Ford*”).) In *Ford*, the Court of Appeal concluded that “[t]he uncontroverted evidence adduced before the respondent court indicated: plaintiffs had been employed by Ford solely in Sacramento County; Ms. Olmstead and Ms. Conner worked with plaintiffs only in Sacramento County; Ford’s office was still in Sacramento County; all the pertinent employment records were maintained in Sacramento County; and no unlawful employment practice was alleged to have occurred in Los Angeles County.” (Id., at 308.) Here, as discussed

above, Defendants have failed to establish that all pertinent records are maintained only in Sacramento County and that no unlawful employment practice was alleged to have occurred in Long Beach (i.e. Los Angeles County), where Plaintiff alleges the Office of the Chancellor is located.

Accordingly, Defendants fail to establish that transfer of venue is mandatory pursuant to Government Code section 12965, subdivision (c)(3).

B.

“Convenience of Witness” (Code Civ. Proc. § 397)

Defendants argue that this action should be transferred to Sacramento County in the interest of witness convenience because the witnesses are primarily current or former employees of the University, who work and/or reside in or near Sacramento County. (Mot., at p. 6.) Defendants further contend that they are not aware of any witnesses from Los Angeles County. (Id.)

Plaintiff argues in opposition that: (1) the discretionary request is premature because Defendants have not filed an answer; (2) Defendants fail to establish witness inconvenience through their threadbare evidence; and (3) due to the regional coverage of the case and the University's status as a dominant pillar of Sacramento County's community, the ends of justice would not be promoted by a transfer. (Opp., at pp. 11-13.)

Defendants filed an answer on August 28, 2026, after Plaintiff's opposition to this motion, but before the hearing.

But Defendants fail to satisfy their evidentiary burden under Code of Civil Procedure section 397 for a discretionary request. Defendants rely on the declaration of Ms. Martin, who lists the 30 potential witnesses found in Plaintiff's complaint, and simply states that based on the last known addresses contained in the University's employment records, all but two (who live out of state) witnesses reside in Sacramento or Northern California counties. (Martin Decl., ¶¶ 7-8.) Defendants rely solely on the names found within Plaintiff's complaint, and neither the motion nor Ms. Martin's declaration identifies the substance of the potential witnesses' expected testimony and/or whether the witnesses have been deposed or have given statements regarding the facts of the case. Defendants rely primarily on the witnesses last known addresses within the employment files as a reason why it

would be “inconvenient” for the witnesses to appear in Los Angeles County.

Accordingly, Defendants fail to establish that a venue transfer would promote the “convenience of witnesses” and the “ends of justice” as required pursuant to Code of Civil Procedure section 397.

C.

Recovery of Costs and Fees pursuant to Code of Civil Procedure sections 399, subdivision (a) and 396b, subdivision (b)

Defendants argue that Plaintiff is obligated to pay Defendants’ costs associated with the filing of this motion pursuant to Code of Civil Procedure section 399, subdivision (a). Defendants further argue that Plaintiff’s counsel should pay Defendants’ reasonable expenses and attorneys’ fees associated with this motion pursuant to Code of Civil Procedure section 396b, subdivision (b). (Mot., at p. 6.)

Plaintiff opposes Defendants’ request and instead argues that the court should award Plaintiff her reasonable attorneys’ fees and expenses because Defendants’ motion was not brought in good faith. (Opp., at pp. 13-14.)

The

Court denies both parties’ requests for attorneys’ fees, as it does not find either the motion or the opposition was not filed in good faith.

Conclusion

Defendants’ motion to transfer venue is DENIED without prejudice.

Date: September 8, 2026

William E. Weinberger

Judge, Los Angeles Superior Court

[1]

The Court does not find that

Plaintiff has met her burden to show that she could not get a fair trial in Sacramento County.

[2]

The court notes that Defendants submitted an email copy, attached to Ms. Martin's supplemental declaration, speaking to Defendant Wood's decision-making role. But because it was filed in reply, Plaintiff was not afforded the opportunity to respond.